

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PAPUA NEW GUINEA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Papua New Guinea, grounded in customary landownership, the environment permit system under CEPA, incorporated land groups, the development forum, and documented landowner campaigns

This guide uses the terms you will actually encounter in PNG (customary land and alienated land, the incorporated land group, the environment permit and Level 1, 2 and 3 activities, the environmental impact statement and public review, the development forum and memorandum of agreement, the special agricultural and business lease, and so on), each explained in plain language where it first comes up. PNG's environment legislation has been amended several times, including in ways that affect court challenges; the core mechanics below apply, but always check the current text.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Tok Pisin terms are given with a short English gloss.

A note on money. Budgets in this guide are in kina (PGK). Every figure is indicative — most PNG landowner campaigns run on very little cash and a great deal of travel, with support from national organisations and lawyers who take these cases. Treat the ranges as a menu, not a bill.

A note on risk. Resource projects in PNG have brought division within and between clans, and disputes have at times turned violent. The most serious risks in most campaigns are not from the state but from **division, co-optation, and conflict among landowners themselves** — which is why this guide places so much weight on collective decision-making, proper representation, and written records.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Papua New Guinea — and PNG communities begin from a position almost unheard of elsewhere: **you own the land**. Around **97 per cent of Papua New Guinea's land, some 47 million hectares, is customary land**, owned under traditional title by clans and landowning groups; less than three per cent has ever been alienated. That single fact reorders everything. In most countries a community must persuade a government not to permit something on land it does not own. In PNG, in most cases, **the developer needs something from you**.

The law gives that ownership practical form. Under the **Land Groups Incorporation Act**, a customary landowning group can register as an **incorporated land group (ILG)**, which gives it legal personality: it can sue and be sued, hold assets in its own name, sign contracts, appoint agents, and make its own rules — and its acts are **as valid as if done by all the customary landowners themselves**. For petroleum projects, ILGs are the principal vehicle through which benefits reach landowners. Separately, the **Environment Act 2000** requires an **environment permit** from the **Conservation and Environment Protection Authority (CEPA)** for **Level 2 and Level 3 activities**, with the larger projects going through a statutory sequence of an **inception report**, an **environmental impact statement**, assessment, and a formal stage of **public review and submissions** — and other authorities are **restrained from approving** a project that lacks the environment permit. And PNG's courts have shown real willingness to act: after a **Commission of Inquiry** found that consent had been circumvented in the granting of **special agricultural and business leases**, under which more than **5.2 million hectares — over 12 per cent of the country** — had been leased out, a number of those leases were **declared void by the courts or surrendered**.

That is a formidable toolkit. The honest counterweight is heavy. Ownership is fragmented across hundreds of language groups and thousands of clans, making **who speaks for the land** the most contested question in the country and leaving communities vulnerable to division and co-optation. ILGs, designed to empower landowners, have repeatedly been misused to capture royalties. Land, forestry and resource agencies have been found seriously wanting, and permit enforcement is weak in remote areas. Amendments made to the Environment Act in 2010 went so far as to provide that a certificate issued by the Director would be **conclusive, unchallengeable in any court except by the permit holder, and a bar to claims in tort** — a provision widely condemned and later the subject of a repeal bill, and one you must check the current status of before relying on any court route.

What "winning" realistically means. Rarely a national policy reversal. More often: a **lease or permit declared void** for defective consent; a project stalled because landowners will not sign; an **environment permit refused, conditioned, or challenged**; a **development forum** outcome that materially improves what the community gets and controls; a logging or agriculture scheme abandoned when its legal basis collapses; or an ILG properly reconstituted so benefits actually reach the clan. The realistic goal is to **make your ownership legally effective** — organised, represented, documented — and to use it.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the land, the licence or lease, the permit level, and who is claiming to speak for the landowners.
2. **Documentation** — build a record of the land, the group, the consent (or its absence), and the harm.
3. **Local opposition** — organise the landowning group properly, because in PNG **representation is the whole battle**.
4. **Legal challenges** — use consent and lease validity, the environment permit process, and the National Court.
5. **Media strategy** — generate coverage that raises the political and reputational cost.

No single step wins alone. In PNG the combination that works is **a properly constituted landowning group plus a challenge to the legal basis of the project's access to the land**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

PNG's system is under-resourced, its land agencies have been found seriously deficient, enforcement in remote areas is minimal, and legislation has at times tried to close the courthouse door. Assessing that honestly helps you choose the right tools: the strongest routes are **challenging the validity of the consent and the lease or licence**, insisting on the **environment permit process and public review**, ensuring your **ILG genuinely represents the clan**, and going to the **National Court**, which has voided leases before. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including division among landowners.

How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it tells you whose land it is, what the developer needed to obtain, and whether they actually obtained it. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, how to keep going.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Papua New Guinea is a parliamentary democracy with a national government, **provincial governments**, and **district and local-level governments** — but the decisive structure is not administrative at all. It is **customary landownership**, held by clans and landowning groups, which covers the overwhelming majority of the country and which the formal legal system recognises indirectly through a patchwork of statutes rather than a single customary land code.

The two systems — and how they meet

Customary land. Around **97 per cent** of PNG's land is owned under customary title by landowning groups. There is no overall Customary Land Act; instead, various statutes recognise that this ownership exists and create mechanisms for dealing with it. Because ownership is fragmented among clans and sub-clans, **identifying the true landowners is frequently the central dispute in any project**, and developers, officials and rival claimants all have incentives to answer that question in particular ways.

Incorporated land groups (ILGs). Under the **Land Groups Incorporation Act 1974**, amended in **2009**, a customary landowning group may incorporate. Once incorporated, the group has legal personality — it can **sue and be sued, hold assets, sign contracts, appoint agents, and make rules governing its own affairs** — and its actions are **as valid as if done by all the customary landowners themselves**. That last point cuts both ways: a properly constituted ILG is your strongest instrument, and an improperly constituted one is the mechanism by which your land and your royalties are taken.

The bodies that decide — and what each one controls

CEPA. The **Conservation and Environment Protection Authority**, established in 2014 in place of the former department, administers the **Environment Act 2000**: it classifies activities, assesses impact work, runs **public review**, and grants, conditions, or refuses the **environment permit**.

The resource regulators. The mining regulator administers exploration and mining tenements under the **Mining Act 1992**; the petroleum department administers licences under the **Oil and Gas Act 1998**; the forest authority administers timber permits under forestry legislation. These grant the right to develop — and each has its own landowner-related requirements.

The Department of Lands and Physical Planning. Registers **ILGs** and customary land dealings, and administers leases under the **Land Act 1996** — including the **special agricultural and business lease (SABL)**, examined below.

Provincial and local-level government. Parties to benefit-sharing and the development forum, and important political actors.

The National Court. The principal forum for challenging leases, permits, and decisions, and for enforcing constitutional rights; PNG's courts have voided leases granted without proper landowner consent.

Which one is "yours"? Ask: **whose customary land is it**, is there an **ILG**, and does it genuinely represent the clan? What **tenement, licence, or lease** does the developer hold, under which Act? Is it a **Level 2 or 3** activity requiring an **environment permit**? Has a **development forum** been convened? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

For a significant resource project the path usually runs on two tracks at once.

The environmental track, under the Environment Act 2000:

1. **Classification.** Activities are categorised as **Level 1, 2 or 3**. **Level 2 and Level 3 activities require an environment permit**; Level 3 covers the largest and most damaging categories, including logging.
2. **Registration of intention.** The proponent must **register an intention to carry out preparatory work** — failing to do so is an offence.
3. **Notice to undertake an environmental impact assessment**, followed by an **inception report** setting the scope.
4. **The environmental impact statement (EIS)**, then **assessment** by CEPA.
5. **Public review and submissions.** A statutory stage at which the public may review the EIS and make submissions. **This is your formal window**, and in remote areas it is frequently the stage most easily reduced to a formality — which is exactly why documenting how it was run matters.

6. **The environment permit**, with conditions — and, importantly, a **restraint on approval by other authorities**, meaning other agencies are not to approve the activity without it. Proceeding without a permit is a serious offence attracting stop-work orders, heavy fines, and prosecution.

The landowner track, under the resource legislation:

1. **Landowner identification** — social mapping and studies establishing who owns the affected land.
2. **The development forum**. Before a major mining or petroleum development, the responsible Minister convenes a **development forum** bringing together the State, the developer, the provincial government, and **landowner representatives** to negotiate benefit-sharing.
3. **The memorandum of agreement (MOA)**. The forum produces an agreement covering royalties, equity, infrastructure, employment, and compensation, with **ILGs** the principal vehicle for delivering benefits in petroleum projects — note that the Mining Act does not expressly refer to ILGs, so arrangements there differ.
4. **Compensation agreements** for land use and damage, negotiated separately.

The rulebook — the policies that decide the outcome

- **The Constitution**. The **Fourth National Goal and Directive Principle** commits the country to conserving natural resources and the environment for future generations — the principle the Environment Act implements — and gives the courts broad powers to do justice in the circumstances of a case.
- **The Environment Act 2000**. Was a permit required and obtained; was the correct level applied; was an EIS prepared and a genuine public review held; are conditions being met? Note the **precautionary approach** the Act adopts.
- **The Land Groups Incorporation Act and the Land Act 1996**. Was the ILG properly constituted and does it represent the clan? Was any lease lawfully granted with genuine landowner consent?
- **The Mining Act 1992 and Oil and Gas Act 1998**. Was a development forum held, were the right landowners represented, and what does the MOA actually say?

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. PNG's economy and public revenue depend heavily on mining, petroleum, gas, and logging; projects are remote and costly to monitor; regulators are small; landowner identification is contested and lucrative to influence; and royalty flows give individuals powerful incentives to claim to speak for a clan. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's decisive lever is usually **the legality of the developer's access to the land**, not a general environmental argument.

The overseers — who watches the decision-makers

- **The National Court** — which has declared leases void where consent was defective, and which hears challenges to permits and administrative decisions.
- **Commissions of Inquiry** — a genuinely consequential PNG mechanism; the inquiry into special agricultural and business leases exposed systemic irregularities and led to leases being voided and to a direction that the scheme be repealed.
- **The Ombudsman Commission** — misconduct and maladministration by officials and leaders.
- **CEPA's enforcement powers** — stop-work notices, penalties, and prosecution for operating without or in breach of a permit.
- **National organisations and lawyers** — experienced environmental and landowner-rights groups and a bar that has litigated major resource and land cases.

Naming and using the right body matters: in PNG the most consequential early judgment is usually **whether the developer's right to be on your land is legally sound**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented PNG and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for PNG sits inside the table: because you own the land, the highest-yield challenges are about **consent and the validity of the developer's access** — not about the merits of the project. Leases covering millions of hectares have been declared void on exactly that basis.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (PGK)	What "Success" Means
Documentation only	5-10%	2-4 months	low	Basis for every other step
Local opposition only	25-40%	6-24 months	low	Landowners refuse; project stalls
Submissions at public review	15-25%	1-3 months	low	On record; conditions or refusal
Properly constituting / fixing the ILG	30-45%	6-18 months	low-moderate	Real representation restored; benefits redirected
Development forum leverage	30-45%	6-24 months	low-moderate	Better MOA terms; conditions; some control
Challenge to lease or licence validity	45-65%	12-48 months	moderate	Lease or licence declared void
Challenge to environment permit	25-40%	12-36 months	moderate	Permit set aside or conditioned
Complaint on permit breach / no permit	25-40%	3-18 months	low	Stop-work notice; penalty; prosecution
Media only	15-25%	2-6 months	low	Public and investor pressure
Docs + local opposition + media	35-50%	9-24 months	low-moderate	Pressure plus stronger case
All steps combined	55-70%	12-48 months	moderate	Lease void, permit set aside, project stalled, or withdrawn

Key insight: all steps together are far more effective than any single one — and the PNG multiplier is **ownership**. A properly constituted landowning group that has not consented, or whose consent was obtained irregularly, is a fundamental obstacle to a project rather than an objection to it. The distinctive advantages are customary title over almost the whole country, the ILG as a legal instrument, the development forum as a negotiating structure, statutory **public review**, and courts that have voided leases. The distinctive disadvantages are fragmented ownership and contested representation, weak enforcement in remote areas, and legislation that has attempted to limit court challenges to permits.

A note on legal cost: submissions, complaints to CEPA, and ILG work cost little. National Court litigation costs more, but PNG has organisations and lawyers who take landowner and environmental cases, and cases challenging leases have been run successfully for communities. The dominant practical cost is travel and communication across dispersed clans and remote sites — budget for it deliberately.

Effectiveness Visualization

SUCCESS PROBABILITY (lease or permit set aside, project stalled or withdrawn, or materially better terms secured)

FAVOURABLE SCENARIO (clan united and properly incorporated; consent absent or defective; documentary record):

All steps combined: 55-70%
 Lease/licence challenge: 45-65%
 ILG / forum leverage: 30-45%
 Single step: 5-40%

TILTED SCENARIO (clan divided; rival ILGs; national-priority project; remote site with no enforcement):

All steps combined: 30-45%
 Consent challenge: 25-40%
 Local + media: 15-30%
 Single step: 3-15%

How to read this honestly. In PNG the strongest legal facts concern **consent and representation**: an ILG that does not actually represent the clan, signatures obtained without informed consent or independent advice, a lease granted over land whose owners were never properly identified, or a development forum at which the wrong people sat for the landowners. The **special agricultural and business lease** experience is the clearest demonstration — leases over more than 5.2 million hectares, a Commission of Inquiry finding that community consent had been circumvented and that landowners lacked independent legal advice and accepted highly unfavourable terms, and courts subsequently declaring leases void. Environmental arguments matter and the permit process is real, but they are usually the second line, not the first. And be clear-eyed about the risk that runs through everything: **a divided clan loses**, because the developer needs only some signatures and rival claimants will supply them.

Step Importance Ranking (When All Combined)

1. **Local opposition and proper representation** — first in PNG, because a united, properly constituted landowning group is both the political force and the legal instrument.
2. **Legal challenges** — above all to consent, lease and licence validity.
3. **Documentation** — of the land, the group, the consent process, and the harm.
4. **The environment permit process** — public review submissions, and enforcement complaints where there is no permit or conditions are breached.
5. **Media** — which reaches national opinion and, for foreign-owned projects, investors and lenders.

Winning PNG campaigns combined a clan that stayed united and properly incorporated, a documented record showing consent was never validly given, national legal support, and sustained public attention.

What PNG Campaigns Actually Show

A few patterns recur. **Consent failures are the winning ground** — between 2003 and 2013 more than **5.2 million hectares**, over **12 per cent of the country**, were leased under **special agricultural and business leases**, frequently as a front for logging; a **Commission of Inquiry** found irregularities and flaws, particularly the **circumvention of community consent**, and that landowners lacked independent legal advice and agreed to highly unfavourable terms; a number of those leases have since been **declared void by the courts or surrendered**, and the government directed that the scheme's provisions be repealed so no new leases could be granted. **Leases can extinguish your rights while they run** — under a lease of up to 99 years, **customary law ceases to apply to the land**, which is precisely why challenging validity early matters so much. **ILGs cut both ways** — they give landowning groups genuine legal power, and they have also been used as vehicles for capturing royalty and compensation payments, which is why independent advice and proper constitution are essential. **The permit system has teeth on paper** — operating without an environment permit is a serious offence, and other authorities are restrained from approving a project that lacks one. **But the courthouse door has been narrowed** — 2010 amendments provided that a Director's certificate would be conclusive and not subject to challenge in any court except by the permit holder, and would bar claims in tort; a repeal bill followed, and the position must be checked. The through-line: **in PNG, fight first about consent and representation**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and record the answers in a document held by the group — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: the exact area affected, the project type and stage, and what is there now — **gardens and food gardens, sago and hunting grounds, rivers and creeks used for drinking and washing, reef and fishing grounds, forest, and sacred and burial sites**. Obtain the **environmental impact statement** and list every admitted impact with its page reference. Pay particular attention to **water and rivers** and, for coastal and marine projects, **tailings and marine disposal**, which have been the most contested environmental questions in PNG's largest projects.

Question 2: Who Has Decision-Making Power — and Who Claims to Speak for the Land?

Identify precisely: (a) **whose customary land** the project affects, clan by clan; (b) whether an **ILG** exists, who its officers are, when it was registered, and **whether it genuinely represents the clan**; (c) what **tenement, licence, or lease** the developer holds and under which Act; (d) whether the project is **Level 2 or Level 3** and holds an **environment permit**; and (e) whether a **development forum** has been held and who sat for the landowners. In PNG, question (b) is usually the decisive one.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **lease or licence declared void** for defective consent or improper grant; an **ILG set aside or reconstituted** so it actually represents the clan; an **environment permit refused, set aside, or conditioned**; a **stop-work notice** where work proceeds without a permit; a **development forum** that produces materially different terms; or landowners simply declining to sign, which for many projects is decisive.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public review and submissions** period on the EIS, which is short and often poorly publicised in remote areas; the grant of the permit; and the timing of any **development forum**. For court action, act **promptly** — challenges to administrative decisions are subject to time limits and to requirements to seek leave, and where clearing or construction is under way you should move at once, because forest and reef damage is irreversible. Also check the **current text of the Environment Act** on challenges to permits before assuming that route is open, and take advice.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who holds the tenement or lease and who owns them, including any foreign parent; who the "landowner company" or ILG officers are and how they were appointed; what royalties, equity, and compensation are in play and who receives them; and whether payments have been flowing to individuals rather than the group. Use public sources — company records, the ILG register, tenement and lease records, and the MOA where you can obtain it. Build a dated, sourced timeline held by the group rather than an individual.

Output of Step 1: a one-page fact sheet with the affected land clan by clan, the ILG position, the tenement or lease, the permit level and status, whether a forum was held, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a logging operation begins on clan land under a lease the clan's older members say they never agreed to, with an access road cut across gardens and a creek running muddy. Working the questions: **Q1** — gardens, forest, and the creek used for drinking are affected; you photograph and map them. **Q2** — you establish **which clans own the affected land**, whether an **ILG** exists, who signed for it, and when it was registered. **Q3** — the decisive question is the **validity of the lease and the consent behind it**: were the true landowners identified, did they give informed consent, did they have independent advice? This is precisely the ground on which leases covering millions of hectares were found defective and voided. In parallel: is there an **environment permit** for a **Level 3** activity like logging, and if not, that is an offence attracting a **stop-work notice**. **Q4** — you act immediately, because timber does not grow back within a campaign. **Q5** — the registers show the lease, the ILG officers, and the company. In an afternoon you know that **the consent-and-lease challenge is the campaign**, with the missing environment permit as a fast parallel lever.

STEP 2: DOCUMENTATION

Documentation in Papua New Guinea has a character all its own, because the decisive questions are usually not "how much harm" but "**whose land is it, and did they really agree?**" That means your evidence is part environmental and part **genealogical, historical, and procedural** — who the landowners are, how the group is constituted, what was said at which meeting, who signed what and after what explanation. Build all three layers, and hold them collectively.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — and prove **who owns it**.

The land and the group. Document the clan and sub-clan structure, the boundaries of the affected land, and the genealogy connecting people to place, with the recognised leaders and how they are chosen. If an **ILG** exists, obtain its registration, constitution, and officers; if not, this record is the foundation for constituting one properly.

Gardens, forest, water, and reef. Photograph and map, dated: food gardens and cash crops, sago stands, hunting and gathering areas, creeks and rivers used for drinking and washing, fishing and reef areas, and forest — noting the households depending on each.

Sacred and burial sites. Record them carefully — damage to them is a serious cultural harm that courts and companies take seriously.

The water above all. Establish the condition of creeks and rivers before works begin — clarity, use, and households drawing from them — since river damage is the most common and most disputed impact in PNG projects.

How to hold it. Keep everything dated and geo-referenced where possible, and — importantly — **hold it as a group**,

with copies outside the village, because documents held by one person become a source of dispute and a target for pressure.

LAYER 2: IMPACT AND LEGALITY ANALYSIS

Show what the project would do and whether it has any lawful basis. Catalogue four things:

1. **Consent.** The most important analysis in PNG. Who was consulted, when, where, in what language, and with what explanation? Who signed, and did they have authority for the clan? Was **independent legal advice** available — its absence was a central finding of the inquiry into agricultural leases. Were meetings minuted, and by whom? Gather statements from those present, especially elders.
2. **Representation.** Whether the **ILG** that purports to act genuinely represents the landowners: how it was formed, whether members were properly enrolled, whether officers were properly appointed, and whether it has held meetings and accounted for money.
3. **Permit and level.** Whether the activity is **Level 2 or 3** and holds a current **environment permit**; whether an **inception report** and **EIS** were prepared; whether **public review** was genuinely held in the affected area and in a language people understood; and whether permit **conditions** are being met.
4. **The EIS itself.** Mine it for admitted impacts with page references, and identify omissions — especially downstream and marine effects, and **cumulative impacts** where other operations share the catchment or coast.

Get expert eyes on it. A technical critique carries more weight when a qualified professional signs it, and national environmental and landowner-rights organisations can arrange this. For water and marine impacts especially, an independent assessment is worth a great deal — these have been the pivotal technical questions in PNG's largest disputes.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms. Document:

- **Health and water** — households whose drinking water is affected, distances now travelled, illness, and effects on fish and shellfish people eat.
- **Livelihoods** — gardens lost, cash crops destroyed, hunting and fishing grounds damaged, and what that means per household where these are primary, not supplementary.
- **Benefits actually received** — what royalties, compensation, or infrastructure were promised, what arrived, and to whom. The gap between promise and delivery is documentable and politically potent.

Package this layer twice: a rigorous version for CEPA, the court, and any inquiry, and a plain-language version in **Tok Pisin** or the local language for community meetings.

How to Structure Your Documentation

- **Phase 1: Land and group (Months 1-2)** — clan structure, boundaries, leaders, ILG status; and photograph the creeks and gardens before further damage.
- **Phase 2: Consent and legality (Months 1-3)** — meetings, signatures, the lease or licence, the ILG file, the permit.
- **Phase 3: Human and economic (Months 3-4)** — households, losses, and benefits promised versus delivered.
- **Phase 4: Ongoing** — a dated photographic record of the works and the water, kept seasonally.

Common Documentation Pitfalls (What Fails)

- **Treating it as an environmental case only** — in PNG, consent and representation usually decide it.
- **Failing to record who said what at meetings** — statements from elders and participants are evidence.
- **Letting one person hold the documents** — hold them collectively, with copies elsewhere.
- **Not obtaining the ILG file** — you cannot challenge representation you have not examined.
- **Missing the public review window** — it is short and thinly advertised in remote areas.
- **No "before" record of the creek** — the change is what will be disputed.

Documentation Budget Breakdown (PGK)

Item	Low (community)	Higher (supported)
Mapping, photography, GPS	minimal	modest
Travel between clans and to town	modest	moderate

Copies of registers, leases, ILG file	modest	modest
Water sampling / technical review	modest	moderate
Legal advice	often supported	moderate
Meetings and translation	modest	modest

The dominant real cost in PNG is **travel and communication** — distances, terrain, and dispersed clans. Fund it collectively and account for it openly, because money is the fastest way a landowner campaign splits.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a PNG case is documentary, but it sits in several registers. The job is knowing which body holds which record.

The Department of Lands and Physical Planning. The **ILG register** — registration, constitution, officers, and members — and records of customary land dealings and **leases**, including any **special agricultural and business lease** over your land. This is your first request, because it answers who is legally speaking for the land.

CEPA. The **environment permit** file: the registration of intention, the notice to undertake assessment, the **inception report**, the **environmental impact statement**, the record of **public review and submissions**, the permit and its **conditions**, and any inspection or enforcement records.

The resource regulators. The mining regulator, petroleum department, or forest authority for the **tenement, licence, or timber permit**, its boundaries and dates, and any landowner studies filed with them.

Development forum and MOA records. Who was convened, who signed for the landowners, and what the **memorandum of agreement** provides — hard to obtain but decisive on benefits.

Company records. Ownership, directors, and any foreign parent, including landowner companies set up to receive benefits.

Commission of Inquiry material. Where an inquiry has examined the scheme affecting you, its findings are public, authoritative, and directly usable.

How to force a document open. PNG lacks a comprehensive freedom-of-information statute, so obtaining documents relies on formal written requests to the agency, requests through your ILG as an interested party, requests via a member of Parliament, national organisations that hold copies, and — in litigation — **discovery**. Put every request in writing and keep the record of refusals.

Free and low-cost help. PNG has national environmental and landowner-rights organisations with long experience of exactly these disputes, and lawyers who have run landowner and environmental cases. **Approaching them early is the highest-value single step**, because they know the registers, the case law on consent, and how to constitute an ILG properly.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the regulator and the tenement behind it, and the local-ally entries point you to the organisations and lawyers already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Papua New Guinea, organising is not one input among several — **it is the legal case**. Because you own the land, the developer's project depends on obtaining consent from the landowners, and the entire contest usually turns on **who genuinely speaks for the clan**. A landowning group that is united, properly constituted, and keeps written records is close to an insurmountable obstacle. A divided one is an opportunity: the developer needs only some signatures, and there will always be someone willing to supply them.

Three principles carry special weight here: **unity before everything** (division is how PNG landowners lose, and it is usually engineered rather than accidental); **proper representation on paper** (an ILG that genuinely reflects the clan

converts customary authority into legal power, while a defective one does the opposite); and **transparency about money** (royalty and compensation flows are the single most common cause of landowner conflict, so open accounts are a protective measure, not an administrative nicety).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the clan, not with the issue. Convene the recognised leaders and elders of the affected clans and sub-clans, and establish agreement on the basic facts: which land is affected, who owns it, and who is authorised to speak. Record the genealogy and boundaries as the community understands them.

Step 1b: Check the ILG position immediately. Find out whether an **ILG** already exists over your land — who registered it, when, who its officers are, and whether the members are actually your people. This is often the moment a campaign discovers the real problem. Where the ILG is defective or fraudulent, addressing it becomes the first task; where none exists, consider constituting one properly with independent advice.

Step 1c: Get independent advice early. Contact a national environmental or landowner-rights organisation, or a lawyer with landowner experience. The inquiry into agricultural leases found landowners had **lacked independent legal advice** and accepted highly unfavourable terms — a warning written in five million hectares.

PHASE 2: PUBLIC LAUNCH (Months 2-4)

Step 2a: Community meeting and a recorded decision. Hold a properly convened meeting of the affected clans, in the local language, and **take a recorded, minuted decision** on the project — with the names of those present. This document is evidence, and it is also protection: a collective decision is far harder to undermine than individual voices.

Step 2b: Make the group's position formal and written. Write to the developer, CEPA, the resource regulator, and the provincial administration stating the clan's position and that no valid consent has been given (Section 8B). Keep stamped copies. A written, early, formal statement of non-consent is one of the most useful documents a PNG campaign can create.

Step 2c: Use the public review window. Where an **EIS** is on public review, make submissions, insist it be held **in the affected area and in a language people understand**, and document how it was conducted (Section 8C).

Step 2d: Media at launch. Time it to the review or forum so coverage and process reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3-6)

Step 3a: Broaden across clans and downstream. Bring in **downstream** communities on the same river or coast, other clans in the footprint, churches — which carry real weight in PNG — provincial and local-level members, and national organisations.

Step 3b: Coalition agreements. Agree explicitly who represents the group, instructs the lawyer, holds the documents and accounts, and speaks publicly. Put it in writing — these are precisely the questions a developer will exploit.

Step 3c: Prepare for the development forum. If a **development forum** is coming, prepare seriously: confirm who will sit for the landowners and on what mandate, obtain independent advice on the draft **MOA**, and decide in advance what the group will and will not accept. Communities that arrive at a forum unprepared are the ones whose agreements later look unfavourable.

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Step 4a: Press the institutions. Submit your evidence and non-consent to CEPA and the regulators; petition the provincial government and your MP; and where the legal basis is defective, instruct lawyers to challenge the **lease, licence, or ILG** in the **National Court**.

Step 4b: Public actions and media (ongoing) — carefully. Public meetings, petitions, and peaceful demonstrations are used and effective, and PNG's media covers landowner disputes closely. But be careful: **confrontation at remote project sites has led to violence in PNG**, and disputes between landowner factions are the most dangerous dynamic of all. Keep actions peaceful, avoid physical obstruction, do not let the campaign become a clan conflict, and take advice before anything at the site itself.

Step 4c: Prevent failure points. Campaigns fail when the clan splits, an individual signs for the group, money is received without accounting, the review window passes unnoticed, or documents sit with one person. Guard unity, minute

everything, account openly, and diarise the dates.

Worked example: a clan that unlocks the strong levers

A logging road appears on clan land; some younger men have been employed, an "ILG" the elders have never heard of is said to have signed, and the creek is running muddy. Anger rises and there is talk of blocking the road — the one course most likely to end in violence and arrests. What converts the anger into force happens differently. First, the elders and sub-clan leaders **convene properly and record a decision**, establishing which land is affected and who owns it. Second, someone travels to town and obtains the **ILG file and the lease from the Lands Department** — and discovers the ILG was registered with members who are not of the clan. Third, the group writes formally to the developer, CEPA, and the regulator stating that **no valid consent has been given**, and asks CEPA whether a **Level 3 environment permit** exists for the logging. Fourth, they photograph and map the gardens, the creek, and the road, and collect **statements from elders** about what was and was not explained at the meeting where signatures were obtained. Fifth, with a national organisation's help, they instruct lawyers to challenge the **lease and the ILG** in the **National Court** — the ground on which leases over millions of hectares have been declared void. Meanwhile the group keeps open accounts of every kina received, so the developer cannot split them. The lesson generalises: **in PNG, the ILG file you obtain and the recorded clan decision you take in month one are what make the lease challenge possible in month twelve — and the unity you protect throughout is what makes it survive.**

Opposition Building Budget: Year-Long Campaign (PGK)

Modest in cash but heavy in travel. The recurring costs are transport between clans and to the provincial centre or Port Moresby, phone and data, copies from the registers, meetings and food for gatherings, and occasional technical or legal fees. National organisations frequently cover legal work in significant cases. Keep **transparent, collective accounts** — in PNG this is not merely good practice but the principal defence against the division that defeats landowner campaigns.

STEP 4: LEGAL CHALLENGES

PNG's legal position is unusual: because the community owns the land, the strongest challenges attack **the developer's right to be there at all**. Three tracks — consent and land tenure, the environment permit, and the courts.

TRACK 1: CONSENT, REPRESENTATION, AND TENURE (the decisive route)

- **Challenge the lease or licence for defective consent.** Where a lease over customary land — including a **special agricultural and business lease** — was granted without the true landowners being identified, without informed consent, or without independent advice, its validity is open to challenge. This is not theoretical: after a **Commission of Inquiry** found that consent had been circumvented across a scheme covering more than **5.2 million hectares**, a number of leases were **declared void by the courts or surrendered**, and the government directed that the enabling provisions be repealed.
- **Challenge or fix the ILG.** Where an **incorporated land group** does not genuinely represent the clan — members improperly enrolled, officers improperly appointed, no meetings, no accounting — challenge its standing to act and seek its rectification or replacement. Because an ILG's acts are treated as valid as if done by all the customary landowners, a defective ILG is the mechanism through which land and money are lost, and correcting it is often the single most valuable legal step available.
- **Withhold and record non-consent.** Where consent has not yet been given, say so formally and in writing to every relevant body. For many projects, landowner refusal is decisive in practice, and a documented refusal undermines any later claim that consent existed.
- **Use the development forum.** Where a forum is convened, ensure the right people sit for the landowners on a proper mandate, and obtain independent advice on the **MOA** before anything is signed.

TRACK 2: THE ENVIRONMENT PERMIT (the parallel lever)

- **Public review submissions.** Make submissions on the **EIS** during the statutory **public review**, insisting it be conducted in the affected area and in an understood language, and documenting how it was actually run.
- **No permit, no project.** **Level 2 and Level 3 activities require an environment permit**, other authorities are **restrained from approving** an activity without one, and proceeding without a permit is a serious offence exposing the developer to **stop-work orders, heavy fines, and prosecution of directors**. Where you believe there is no permit, ask CEPA in writing — the answer, or the silence, is useful either way.

- **Enforce the conditions.** Where a permit exists, obtain its conditions and report breaches to CEPA with dated evidence, seeking a stop-work notice or enforcement.
- **Check the current law on challenging permits.** Amendments made in 2010 provided that a certificate issued by the Director would be conclusive evidence of lawfulness, **final and not subject to challenge or review in any court except by the permit holder**, and a bar to claims in tort. A bill to repeal those amendments was introduced, and the position has been contested — **take advice on the current text before relying on a permit challenge**, and note that this restriction does not touch the consent and tenure route in Track 1.

TRACK 3: THE COURTS AND INQUIRIES

- **The National Court.** The forum for challenging the validity of leases, licences, and ILG registrations, for judicial review of administrative decisions, and for enforcing rights. Seek **interim orders** restraining clearing or construction while the case runs, since forest and reef damage cannot be undone.
- **Constitutional grounding.** The Constitution's **Fourth National Goal and Directive Principle** commits the country to conserving the environment and natural resources for future generations, and the courts have broad powers to make orders doing justice in the circumstances of a case.
- **Commissions of Inquiry.** A genuinely consequential PNG mechanism: calls for an inquiry into a scheme or a sector are realistic and have produced findings that led directly to leases being voided.
- **The Ombudsman Commission.** For misconduct and maladministration by officials and leaders involved in the grant.

The three legal challenge types

TYPE 1: CONSENT, REPRESENTATION, AND TENURE (the decisive route)

Challenges to the lease, licence, or ILG for defective consent or representation — the ground on which PNG communities have actually won.

TYPE 2: THE ENVIRONMENT PERMIT (the parallel lever)

Public review submissions, "no permit" complaints, and condition enforcement — fast, cheap, and capable of stopping work.

TYPE 3: THE COURTS AND INQUIRIES

National Court proceedings with interim orders, calls for a Commission of Inquiry, and the Ombudsman Commission.

Legal Strategy Decision Tree

1. **Is there a lease or ILG purporting to give consent?** → Obtain the file and examine **who signed and with what authority**; this is usually the case.
2. **Is clearing or construction happening now?** → Seek **interim orders** and, in parallel, ask CEPA whether a permit exists.
3. **Is the activity Level 2 or 3 without a permit?** → Complain formally; this is an offence and can produce a stop-work notice quickly.
4. **Is a development forum coming?** → Get independent advice on the MOA and secure a proper mandate before anyone signs.
5. **Is the problem systemic across many communities?** → Press for a **Commission of Inquiry**, which in PNG has real consequences.

Litigation Success Factors

Evidence that the true landowners were not identified or did not consent; documentary proof of how the ILG was constituted; statements from elders and participants about what was and was not explained; the absence of independent advice; a united clan behind the proceedings; interim orders sought early; and experienced counsel supported by a national organisation.

What to Avoid: Legal Failures

Fighting on environmental merits when consent is the weak point; allowing individuals to litigate separately from the group; missing the public review window; failing to seek interim orders while clearing proceeds; assuming a permit challenge is available without checking the current statutory text; and allowing the dispute to become a conflict between

landowner factions, which destroys both the case and the community.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in PNG.

True landowners never identified, or consent obtained without explanation or advice → lease or licence void (the strongest ground). Feed it with: genealogies, elders' statements, meeting records, and the absence of independent advice.

ILG improperly constituted or unrepresentative → challenge its standing; rectification. Feed it with: the ILG register file, member lists, and evidence of who was and was not enrolled.

Level 2 or 3 activity operating without an environment permit → offence; stop-work; prosecution. Feed it with: CEPA's answer to your written enquiry and dated photographs of the works.

Public review not held in the affected area or in an understood language → defective process. Feed it with: your record of when, where, and how it was conducted.

Breach of permit conditions → enforcement. Feed it with: the conditions and dated evidence of non-compliance.

Damage to water, gardens, reef, or sacred sites → compensation and permit grounds. Feed it with: before-and-after images, household counts, and any technical assessment.

Benefits promised but not delivered → forum and political leverage, and evidence of bad faith. Feed it with: the MOA or promises made, against what has actually arrived and to whom.

The pattern: **lead with consent and representation**, use the permit route in parallel for speed, and always ask for orders that prevent irreversible damage.

STEP 5: MEDIA STRATEGY

Media matters in PNG because landowner disputes are closely followed nationally, and because many projects are financed or owned from abroad, where reputational and investor pressure is real.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the **ILG file showing who really signed**, the lease, a named elder who can say the clan never agreed, dated images of the muddy creek and felled forest, and CEPA's answer on the permit. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a document showing consent was not given + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in PNG: **land taken without real consent**, **rivers and reefs damaged**, and **promised benefits that never arrived** — the last being both highly newsworthy and politically potent.

Know the Outlets That Cover This Beat

Map the national newspapers and reporters covering landowner and resource issues, the broadcasters, online outlets, and the regional and international wires and specialist outlets that follow Pacific resource projects — these matter where a foreign parent or lender is involved.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a visit and access to elders and affected households, and be scrupulously accurate — in a contested

landowner dispute, one wrong claim discredits everything you say.

Why media matters even when it doesn't make the front page

Coverage reaches the organisation that will help with the ILG file, the lawyer who will run the lease challenge, the MP who can call for an inquiry, and — for foreign-owned projects — investors and lenders whose standards may be breached. It also creates a dated public record of the clan's position, making later claims of consent harder to sustain.

Sample Media Timeline

Launch with the recorded clan decision and the ILG discovery; refresh at each milestone — the formal non-consent letter, CEPA's answer on the permit, the court filing, any interim order, the forum, and each unmet promise.

Media Measurement

Track coverage, but measure what matters: whether CEPA responds, whether work stops, whether the regulator or the Lands Department engages with the ILG problem, and whether the clan is holding together.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and — crucially in PNG — **collective**: sign as the clan or the group, not as an individual, and keep stamped copies. Have a lawyer review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [District, Province]: clan says it never consented to [project] — lease and ILG documents attached

Dear [name],

[Company] is carrying out [logging/mining/agriculture] on customary land at [place, LLG, district, province], belonging to the [name] clan. We attach the **lease/licence** and the **ILG register file**, which shows that the group said to have consented was registered with members who are not of our clan [or: was registered on [date], after the agreement was said to have been signed].

Our elders state that no proper explanation was given and no independent advice was available. We attach their statements, dated photographs of [the creek/gardens/forest] from [dates], and our recorded clan decision of [date].

[Where relevant: we have asked CEPA whether a Level 3 environment permit exists; their reply is attached / they have not replied.]

I can arrange interviews with elders and a visit. Could we speak this week?

[Name] · [Clan/Group] · [phone] · [email]

8B. Formal statement of non-consent

To: [Company]; the Managing Director, CEPA; [the Mineral Resources Authority / Department of Petroleum and Energy / PNG Forest Authority]; the Secretary, Department of Lands and Physical Planning; the [Province] Administrator
Subject: Notice that the [name] clan has not consented to [project] at [location]

We are the customary landowners of [describe land] at [location]. At a meeting of the clan held at [place] on [date], recorded and attended by [number] members including [named leaders], the clan resolved that it **does not consent** to [project].

We further state that: 1. [The persons said to have signed on our behalf had no authority to do so / the ILG said to represent us, registration No. [number], does not comprise our members.] 2. [No proper explanation of the terms was given, and no independent legal advice was available to us.] 3. [Works have nonetheless commenced at [location] on [date], damaging [gardens/creek/forest].]

We request written confirmation of: the lease/licence held; whether an **environment permit** has been issued for this activity and at what level; and the basis on which landowner consent is said to have been obtained.

[Signed by clan leaders and members, with names; date; contact]

8C. Submission at public review of the environmental impact statement

Subject: Submission on the environmental impact statement for [project]

To the Managing Director, Conservation and Environment Protection Authority:

The [name] clan, customary landowners of the affected land, submits: 1. **Consent**. The landowners have not consented; the EIS assumes landowner support that does not exist [see attached clan resolution]. 2. **Water**. The project affects [creek/river], from which [number] households take drinking water; downstream effects are inadequately assessed. 3. **Gardens, forest, reef, and sacred sites**. [Specify what is affected and the households dependent on it, including [sites].] 4. **Cumulative impacts**. [Other operations in the same catchment/coast are not assessed together.] 5. **Process**. [The public review was not conducted in the affected area / not in a language people understand / notice reached us on [date], too late to prepare.]

We ask that the permit be **refused**, or at minimum that the assessment be redone with proper landowner consultation.

[Clan/group, date, contact; attach evidence]

8D. Enquiry to CEPA about permit status

Subject: Request for confirmation of environment permit status — [project] at [location]

To the Managing Director, CEPA:

[Company] is carrying out [describe activity, which appears to be a Level 2/3 activity] at [location] since [date]. We attach dated photographs.

We request written confirmation of: (a) whether an **environment permit** has been issued for this activity, and its number and conditions; (b) whether a registration of intention, inception report and environmental impact statement were lodged; and (c) whether a public review was conducted.

If no permit has been issued, we request that CEPA **exercise its enforcement powers, including a stop-work notice**, and inform us of the action taken.

[Clan/group, date, contact]

8E. Request for the ILG and lease file

Subject: Request for copies of ILG registration and lease documents

To the Secretary, Department of Lands and Physical Planning [Registrar of Incorporated Land Groups]:

We, the [name] clan of [location], request certified copies of: 1. the registration file of Incorporated Land Group No. [number] said to represent the landowners of [land], including its constitution, member list, and officers; 2. any **lease** (including any special agricultural and business lease) granted over that land, with the instrument, the plan, and the supporting landowner consent documents; 3. any land investigation report or landowner identification study for that land.

We enclose the prescribed fees and request a written reply. We are the customary landowners and have a direct interest in these records.

[Clan/group, date, contact]

8F. Letter requesting proper conduct of the development forum

Subject: The [name] clan's representation at the development forum for [project]

To the Minister for [Mining / Petroleum], copied to the [Province] Administration and [Company]:

We are customary landowners of land affected by [project]. We write concerning the development forum and any memorandum of agreement.

We request that: (a) the clan's representatives be [named persons], mandated by our recorded decision of [date] (attached); (b) the draft memorandum of agreement be provided to us **in advance and in a language we understand**; and (c) we be afforded **independent legal advice** before signing anything, in light of the findings that landowners elsewhere signed unfavourable agreements without such advice.

[Clan leaders, date, contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Name] clan says it never consented to [project] at [location]

The [name] clan, customary landowners at [location, province], today stated that it has given **no valid consent** to [project] by [company], and has written to CEPA, the [regulator], and the Department of Lands.

"[Short, human quote from an elder]," said [name]. The clan's recorded resolution of [date] is attached, together with the ILG register file, which shows [the discrepancy]. Dated photographs show [the creek/forest]. [Where relevant: the clan has asked CEPA to confirm whether any environment permit exists.]

Contact: [name, phone]. Documents, photographs, and interviews available on request.

8H. Petition for a Commission of Inquiry or Ombudsman investigation

Subject: Request for investigation into the grant of [lease/licence] over customary land at [location]

To [the Prime Minister and Minister for Lands / the Ombudsman Commission]:

We, the customary landowners of [land], request an investigation into the grant of [lease/licence No.] over our land, on the grounds that: the true landowners were not identified; the incorporated land group said to represent us was not properly constituted; no independent advice was provided; and the terms are grossly unfavourable.

We note the findings of the Commission of Inquiry into special agricultural and business leases, which identified precisely these failures across the country and led to leases being declared void.

We attach our documentation and request a written response.

[Clan/group, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual lease, ILG, or permit numbers, and have counsel review anything heading to court. **Sign collectively**, keep stamped copies, and hold documents as a group with copies outside the village. Note that the current text of the Environment Act on challenging permits should be checked before relying on that route — but the **consent and tenure route is unaffected by it**. And keep everything peaceful and factual: in PNG the greatest danger to a landowner campaign is division and conflict among landowners themselves.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. If you have limited time, you can still do real damage to a bad project — and in PNG the highest-leverage actions are documentary and cost almost nothing. In rough order of impact for the effort:

1. **Hold a proper clan meeting and record a decision.** A minuted, attended, collective resolution stating the clan's position is the foundation of everything, and it protects individuals from being singled out.
2. **Get the ILG file and the lease from the Lands Department** (Section 8E). In PNG this is where the problem usually is: an incorporated land group registered with the wrong members, or a lease granted on consent that was never validly given.
3. **Send the formal non-consent letter** (Section 8B) to the company, CEPA, the regulator, and Lands. One written, dated statement that the landowners do not consent undermines every later claim that they did.
4. **Ask CEPA whether an environment permit exists** (Section 8D). Level 2 and 3 activities require one, other authorities cannot approve without it, and operating without one is an offence that can bring a stop-work notice.
5. **Photograph the creek, the gardens, and the works, dated.** The "before" record of water is what later disputes turn on.
6. **Take statements from elders** about what was and was not explained before any signatures were obtained — the absence of explanation and of independent advice is the classic winning fact.

7. **Contact a national landowner-rights or environmental organisation.** They know the registers, the case law on consent, and how to fix a defective ILG.

If you do only the first three, you have created the collective record, found the legal weak point, and put your non-consent on the file. That is a real contribution — and it is the sequence by which PNG communities have had leases voided.

WHEN THE SYSTEM IS TILTED

PNG's tilt has a particular shape: the community's legal position is unusually strong, and the pressure is applied to **fragment the community** rather than to defeat it in law.

What This Tilt DOES (and DOESN'T DO)

The tilt means regulators are small and remote sites go unmonitored; land and resource agencies have been found seriously deficient; ILGs designed to empower landowners have been used to capture their royalties; benefits promised at forums frequently do not arrive; and legislation has at times tried to bar court challenges to permits. It does **not** remove your position: **you own the land**; an ILG properly constituted gives that ownership legal force; **Level 2 and 3 activities cannot lawfully proceed without an environment permit**, and other authorities are restrained from approving them; the **National Court has declared leases void**; and **Commissions of Inquiry** have produced findings that unwound a national scheme. The key is to fight on consent and to hold the clan together.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **United clan, defective consent, documents obtainable.** The strongest position in PNG practice: the developer's legal foundation is weak and you can attack it directly.
- **Mixed.** Some clan members have signed or are employed; an ILG exists but is questionable. Weight shifts to fixing representation, transparency about money, the permit route for speed, and patient legal work on validity.
- **Entrenched.** A major national-revenue project with an established MOA, benefit flows, and a divided landowner base. Assume the fight is long; concentrate on **accountability for promised benefits**, permit conditions, environmental monitoring, and holding the clan's collective position — and treat improved terms and enforced conditions as genuine wins.

Documented PNG Dynamics

The record shows both the strength and the wall. **Consent failures have been exposed at national scale** — between 2003 and 2013, more than **5.2 million hectares**, over **12 per cent of PNG's land area**, were leased under **special agricultural and business leases**, often as a front for logging; the **Commission of Inquiry** found irregularities and flaws, particularly the **circumvention of community consent**, and that landowners lacked independent legal advice and agreed to highly unfavourable terms. **Courts have acted** — a number of those leases were **declared void or surrendered**, and the government directed that the enabling provisions be repealed so no new such leases could be granted. **The stakes of a lease are total while it runs** — during a lease of up to 99 years, **customary law ceases to apply to the land**. **ILGs are double-edged** — they give landowning groups real legal capacity, and they have also been the vehicle through which royalty and compensation payments were captured, which is why independent advice and proper constitution matter so much. **And the courthouse door has been narrowed once already** — 2010 amendments made a Director's certificate conclusive, unchallengeable in any court except by the permit holder, and a bar to claims in tort; a repeal bill followed, and the current position must be checked. The through-line: **PNG communities win on consent, and lose to division.**

Assessment Framework — Determine Your Situation

Ask: is the clan united, and is there a recorded collective decision? Does an ILG exist, and does it genuinely represent us? Was there a lease or agreement, and how was consent obtained? Is there an environment permit for a Level 2 or 3 activity? Is work already under way, making interim orders urgent? Are benefits flowing to individuals rather than the group? Can we reach a national organisation? The answers tell you whether this is a validity case, a representation case, or an accountability case.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

PNG landowner campaigns have used clan meetings, petitions, public statements, provincial and national lobbying, and peaceful demonstrations, and these have been effective — particularly when paired with legal action. But two cautions are specific and serious. First, **physical obstruction at remote resource sites has led to violence and arrests**, and sites are often far from any independent witness. Second, and more importantly, **the greatest danger is conflict between landowner factions**: disputes over royalties and representation have caused lasting harm within and between clans. Keep everything peaceful, avoid blockades and confrontation, insist on collective decisions and open accounts, and take advice before any action at the site. This guide notes such tactics exist; it does not advise breaking the law, and in PNG the unity and safety of the clan is the campaign's principal asset.

Honest Assessment

Tilted fights are harder, and PNG's particular frustration is watching a strong legal position dissolve through division. But "harder" is not "hopeless": PNG landowners triggered a national inquiry, saw leases over millions of hectares declared void, and forced the abandonment of the scheme that produced them. Concentrate force where the tilt is weakest — **consent, representation, and the permit requirement** — protect the clan's unity above all, and keep the money transparent.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real in PNG, and it has a characteristic mechanism: it works **through landowner institutions rather than around them**. Read your situation actor by actor, and document rather than accuse.

The ILG. The central pressure point. An incorporated land group registered with members who are not of the clan, officers appointed without a proper meeting, or one that receives royalties without accounting, is the mechanism by which land and money are captured — and because an ILG's acts are treated as valid as if done by all the landowners, the consequences are severe. Signs: an ILG you have never heard of, officers unknown to elders, money arriving to individuals. Lever: the **ILG register file** and a challenge to its constitution.

The land agencies. Registration and leasing of customary land has been found seriously deficient, most starkly in the agricultural-lease scheme. Signs: a lease granted without any land investigation you knew of, consent documents you have never seen, dates that do not line up. Lever: the file, the Commission of Inquiry findings, and the National Court.

Landowner companies and benefit flows. Companies established to receive landowner benefits are frequently controlled by a few individuals. Signs: no accounts, no meetings, benefits not reaching households. Lever: company records, the MOA, and demands for accounting — plus the Ombudsman Commission where leaders are involved.

The regulators. Small agencies overseeing remote, high-value operations. Signs: no inspections, permits issued despite substantiated objections, conditions never enforced. Lever: written enquiries, enforcement complaints, and litigation.

Legislative narrowing. Where the law itself is amended to bar challenges — as in 2010 — that is a form of capture operating at the highest level. Lever: political and public pressure for repeal, and reliance on the consent and tenure route, which such provisions did not touch.

How to act on it, safely. Document from the registers before you speak. Route genuine allegations to the **Ombudsman Commission**, the relevant department, and — where a scheme is systemically defective — a call for a **Commission of Inquiry**, which in PNG has genuinely unwound national programmes. Do not make unproven public accusations against individuals in your own community: in a landowner dispute that is the fastest route to lasting conflict, and it destroys the unity on which your legal position depends.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In PNG the timeline is shaped by two things the other guides do not share: the **speed at which clearing destroys the thing you are protecting**, and the **slow, essential work of establishing who lawfully speaks for the land**.

Realistic 12-Month Campaign Timeline

Months 1-2 (Foundation: the clan and the file). - Convene the affected clans and sub-clans and **record a collective decision**; establish boundaries, genealogy, and recognised leaders. - Request the **ILG register file and the lease or licence** from the Lands Department (Section 8E) — in PNG this is usually where the case is found. - Send the **formal statement of non-consent** to the company, CEPA, the regulator, and Lands (Section 8B). - Photograph and map **gardens, creeks, forest, reef, and sacred sites**, dated. - Contact a **national landowner-rights or environmental organisation**.

Months 2-4 (Formal action). - Ask **CEPA whether an environment permit exists**, and at what level (Section 8D); complain and seek a **stop-work notice** if there is none. - Make **submissions at public review** of any EIS, and document how the review was conducted (Section 8C). - Take **statements from elders and participants** about the meetings at which signatures were obtained. - Where a **development forum** is approaching, secure a proper mandate and independent advice on the draft MOA (Section 8F). - Launch media on the recorded decision and the ILG discrepancy (Step 5).

Months 4-8 (Legal challenge). - With counsel, prepare and file the challenge to the **lease, licence, or ILG** in the **National Court**, seeking **interim orders** where clearing is under way (Step 4, Track 1 and Track 3). - Continue permit enforcement complaints in parallel. - Broaden across clans and downstream communities; keep churches and provincial members engaged (Step 3, Phase 3). - Maintain **open accounts** of anything received — the single best protection against division.

Months 8-12 (Pressure and accountability). - Press the regulators, the province, and members of Parliament; where the problem is systemic, call for a **Commission of Inquiry** (Section 8H). - Document **benefits promised versus delivered** — powerful evidence and powerful publicity. - Sustain media, including to any foreign parent company or lender.

Beyond 12 months. - Expect litigation and appeals to run for years; keep the clan's collective structures, accounts, and records intact. - Where a lease or ILG is set aside, move immediately to **constitute representation properly** so the vacuum is not filled by others. - Keep monitoring conditions and benefit delivery — the second campaign is always about whether what was agreed actually happens.

Warning Signs — Act Early

Survey teams or camps appearing; a road being cut; a meeting convened at short notice with papers to sign; an ILG you have not heard of being mentioned; individuals receiving payments or vehicles; a public review notice appearing in a town newspaper you do not receive; talk of a development forum. Each is a trigger to **convene the clan and obtain the file** — because in PNG the documents are usually created before the community is told.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: hold the clan together and decide collectively; obtain the **ILG and lease file** early; put **non-consent in writing** to everyone; check whether an **environment permit** exists; take elders' statements while memories are fresh; get **independent advice before anyone signs**; seek interim orders before the forest goes; keep **transparent accounts**; and use the courts and, where systemic, an inquiry. Losing campaigns: fight on environmental merits while the consent question goes unexamined; let individuals sign or receive money; allow the dispute to become clan conflict; and discover the ILG problem years too late.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Papua New Guinea takes several forms, and it is worth naming them so you recognise a win when you get one: - a **lease or licence declared void** for defective consent — the outcome achieved across a national scheme covering millions of hectares; - an **ILG set aside or reconstituted** so it genuinely represents the clan, and benefits redirected accordingly; - a **stop-work notice or prosecution** where an activity proceeded without an environment permit; - an **environment permit refused or conditioned**, or conditions actually enforced; - a **development forum outcome** that materially improves what the community receives and controls; - a project **stalled or abandoned** because landowners would not consent; - a **Commission of Inquiry** that exposes and unwinds a systemic scheme; - and,

throughout, a **clan that stayed united** and kept its records and its accounts.

PNG landowners have achieved every one of these.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If consent was never validly given and you can document it, keep going — this is the ground on which PNG communities have won at scale. If a lease has been set aside, the work shifts immediately to constituting representation properly, because an empty space will be filled. If the project is established and benefits are flowing, the realistic campaign becomes **accountability**: are the conditions enforced, is the money reaching households, is the river being monitored? And if continuing would set clan against clan, slow down: in PNG a divided community loses both the case and far more besides.

The Bottom Line

Papua New Guinea's regulators are small, its remote sites go unwatched, its land agencies have been found seriously deficient, its landowner institutions have been used against the very people they were built for, and its legislature has once tried to close the courthouse door on permit challenges. But PNG communities begin from a position almost no others have: **around 97 per cent of the country is customary land, and it is yours**. The **Land Groups Incorporation Act** lets a clan turn that ownership into legal personality, able to sue, contract, and hold assets, with its acts as valid as those of all the landowners. The **Environment Act 2000** requires an **environment permit** for **Level 2 and 3 activities**, restrains other authorities from approving without it, provides a statutory stage of **public review and submissions**, and makes operating without a permit a serious offence. The **development forum** gives landowners a seat at the table on benefits. And the record shows what happens when consent is faked: an inquiry into leases covering more than **5.2 million hectares** found community consent had been circumvented, and the courts **declared those leases void**. Communities that convene properly and decide collectively, obtain the ILG and lease file early, put their non-consent in writing, check whether any permit exists, take elders' statements, insist on independent advice before anyone signs, seek orders before the forest falls, keep transparent accounts, and hold together have stopped projects, voided leases, and forced a national scheme to be abandoned. No single step wins; the combination does. Start today by calling the clan together, recording what you decide, and asking Lands for the file.